PURCHASE AGREEMENT

THIS PURCHASE AGREEMENT ("**Agreement**") is made and entered into this 24th day of June, 2024 (the "**Effective Date**"), by and between **Petersburg South Associates, LLC**, a Virginia limited liability company (**"Seller"**), whose tax mailing address is 7204 Glen Forest Dr, Suite 100, Richmond, Virginia 23226, and **Woda Cooper Development, Inc.**, an Ohio corporation (**"Buyer"**), whose tax mailing address is 500 S. Front Street, 10th Floor, Columbus, Ohio 43215.

BACKGROUND

A. Seller is the owner of real property of 23.46 +/- acres more or less; identified in the tax records of the City of Petersburg, Virginia, as tax map number of 087030810; approximately located at 230 Medical Park Boulevard, Petersburg, Virginia 23805; and as generally depicted in Exhibit A attached hereto (hereinafter referred to as the "**Property**").

B. Seller has agreed to sell the Property, and Buyer has agreed to purchase the Property, upon and subject to the terms and conditions of this Agreement.

AGREEMENT

For valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. **Purchase Price.** The purchase price for the Property shall be Nine Hundred Ninety-Five Thousand and no/100 Dollars ($995,000.000) (the **"Purchase Price"**).

2. **Deposits.** Buyer shall deposit with Star Title Agency, LLC (55 South Front Street, Suite 250, Columbus, Ohio 43215, Attn: Jim Saad)(the "**Escrow Agent**"), Twenty-five Thousand and no/100 Dollars ($25,000.00) (the "**Initial Earnest Deposit**") within fifteen (15) business days after the Effective Date. Five Thousand and no/100 Dollars ($5,000.00) of the Initial Earnest Deposit will become nonrefundable to Buyer on August 16, 2024. An additional Five Thousand and no/100 Dollars ($5,000.00) of the Initial Earnest Deposit will become nonrefundable to Buyer on December 31, 2024. The remaining Fifteen Thousand and no/100 Dollars ($15,000.00) of the Initial Earnest Deposit will become nonrefundable to Buyer on March 14, 2025 (the "**Diligence Date**"). The Initial Earnest Deposit, any and all Subsequent Earnest Deposits (as defined below), and the NEPA Extension Deposit, if any (collectively, the "**Earnest Deposits**"), shall be paid to Seller and credited towards the Purchase Price at Closing (as defined hereinafter). In the event that this Agreement is terminated, or Closing otherwise does not occur for any reason other than Seller default, Escrow Agent is hereby authorized and directed to pay to Seller, upon written demand by Seller, such portion of the Earnest Deposits then being held by Escrow Agent and designated as nonrefundable to Buyer hereunder at such time, with any remainder to be refunded to Buyer.

3. **Closing Deliverables and Costs.** At Closing, Seller shall deliver to Buyer, or its permitted assignee, a special warranty deed in form acceptable for recording in the Office of the Clerk of the Circuit Court for the City of Petersburg, Virginia (the "**Deed**"). The Deed shall be prepared by Seller. At Closing, Buyer shall pay the Purchase Price to Seller in cash or other immediately available funds less the amount of the Earnest Deposits released to Seller and subject to costs prorated in accordance with the following paragraph. Real property taxes pertaining to the Property shall be prorated between the parties as of Closing. Buyer shall be responsible for any and all roll-back tax incurred in connection with the sale of the property to Buyer or change in its use. Seller shall be responsible for paying any Virginia grantor's tax on the Deed, as well as the cost of preparing the same. Buyer shall be responsible for paying any and all taxes, charges, costs and fees incurred in connection with Closing, including without limitation those assessed upon the recording of the Deed, except as otherwise expressly provided in the preceding sentence.

4. **Closing Date.**

a. Settlement of the purchase and sale of the Property pursuant to this Agreement ("**Closing**") shall occur on or before June 14, 2025 (the "**Closing Date**"). Buyer shall have four (4) options to extend the Closing Date (each, a "**Closing Extension**") as set forth below. Each Closing Extension may be exercised, if at all, by Buyer delivering written notice thereof to Seller and Escrow Agent on or before the then-current Closing Date, and delivering to Escrow Agent on or before the then-current Closing Date an additional earnest money payment of Twenty Thousand and no/100 Dollars ($20,000.00) (each a "**Subsequent Earnest Deposit**") for each Closing Extension. Any Subsequent Earnest Deposits shall be immediately non-refundable when paid to Buyer, and shall be credited to the Purchase Price at Closing. The first Closing Extension shall extend the Closing Date to July 31, 2025. Each subsequent Closing Extension shall extend the Closing Date to the date that is sixty (60) days after the then-current Closing Date (as the same may be extended by prior Closing Extensions).

b. Buyer may have to perform a Part 58 National Environmental Policy Act review ("**NEPA**") as a result of the financing Buyer obtains for its development. If the NEPA review has not been completed and Buyer has exercised all Closing Extensions, Buyer may extend the Closing Date for an additional period of up to ninety (90) days to allow for the completion of the NEPA review (the "**NEPA Extension**"). The NEPA Extension may be exercised, if at all, by Buyer delivering written notice thereof to Seller and Escrow Agent on or before the then-current Closing Date and delivering to Escrow Agent on or before the then-current Closing Date an additional earnest money payment of Forty Thousand and no/100 Dollars ($40,000.00) (the "**NEPA Extension Deposit**"). The NEPA Extension may only be exercised if a NEPA review is required by one of Buyer's funding, and any written notice to Seller exercising of the NEPA Extension shall be accompanied by documentation reasonably evidencing such

requirement. The NEPA Extension Deposit shall when paid be immediately non-refundable to Buyer and shall be credited to the Purchase Price at Closing.

5. **Title and Survey.** At Closing, Seller shall convey title to the Property to Buyer free and clear of all liens and encumbrances other than Permitted Exceptions (as defined below). Buyer shall obtain a title insurance commitment for the Property (the "**Commitment**") by July 18, 2024, and if any exception noted therein is unacceptable to Buyer (each, an "**Objection**"), Buyer shall notify Seller thereof in writing on or before September 20, 2024. Such notice (the "**Objection Notice**") shall be accompanied by a copy of the Commitment and copies of all instruments referenced therein which are Objections. Any matters of title not designated as Objections in a timely-delivered Objection Notice shall be deemed "**Permitted Exceptions**". On or before the date that is fifteen (15) business days after Buyer timely delivers to Seller an Objection Notice (the "**Cure Notice Deadline**"), Seller shall notify Buyer a written notice (the "**Cure Notice**") of which, if any of the Objections contained in such Objection Notice that Seller agrees to cure (whether one or more, the "**Cure Items**"). Seller shall then cause all the Cure Items to be cured at or before Closing. If Seller fails to timely deliver to Buyer the Cure Notice, then Seller shall be deemed to have elected not to cure all of the Objections. If Seller elects, or is deemed to have elected, not to cure any Objections, then Buyer may terminate this Agreement by written notice to Seller thereof delivered no later than fifteen (15) business days after the earlier of (x) the date Seller delivers a Cure Notice or (y) the Cure Notice Deadline. If Buyer timely exercises the foregoing termination right, then the Initial Earnest Deposit shall be paid out by Escrow Agent to Buyer and Seller in such proportions as may be specified in Section 2 above, and Seller and Buyer shall have no further rights or obligations hereunder except for those which by their terms expressly survive such termination; if Buyer does not timely exercise the foregoing termination right, then all Objections that are not Cure Items shall be deemed "Permitted Exceptions", and Seller shall have no obligations to cure the same. For the avoidance of doubt, Buyer may not include as Objections any matters of title arising by or through the acts or omissions of Buyer or any agent of Buyer ("**Buyer-Caused Exceptions**"). Buyer shall indemnify, defend and hold Seller harmless from and against any and all Buyer-Caused Exceptions, and upon demand shall promptly cause any Buyer-Caused Exceptions to be released from title as to the Property at Buyer's sole cost and expense. The foregoing indemnity shall survive the termination of this Agreement. From and after the Effective Date, Seller shall not cause or suffer any encumbrances to be recorded against the Property other than Buyer-Caused Exceptions. If Buyer elects to procure an ALTA/NSPS survey of the Property (the "**Survey**"), it may object to any matters shown thereon and not reflected in the Commitment no later than November 1, 2024. Any such objections shall be made and shall be subject to the same Seller cure election and potential Buyer termination rights and timelines as set forth hereinabove with respect to Objections as to matters in the Commitment, *mutatis mutandis*.

6. **Closing Contingencies**. Buyer's obligation to purchase the Property shall be subject to and contingent upon satisfaction to Buyer, at Buyer's sole cost and expense and in Buyer's sole discretion of the contingencies set forth below (collectively, the

"**Contingencies**") on or before the date specified below for satisfaction or waiver of such Contingency (each, a "**Satisfaction Date**"). If any of the Contingencies are not satisfied or waived by Buyer prior to applicable Satisfaction Date, then Buyer shall have sole and absolute right to terminate this Purchase Agreement by written notice to Seller delivered no later than the applicable Satisfaction Date, and if Buyer does not timely terminate in accordance with this sentence it shall be deemed to have waived such Contingency. Upon termination of this Agreement pursuant to the preceding sentence, all Earnest Deposits deemed nonrefundable as of the delivery of such notice of termination shall be released to Seller if not yet released, and neither party shall have any further rights, obligations, or liabilities hereunder other than those that by their terms expressly survive such termination.

a. Buyer determining or obtaining, on or before July 18, 2024:

   i. that Buyer is satisfied with its site and market review of the Property; and
   ii. a resolution from the local government supporting the development within a revitalization area.

b. Buyer determining, on or before the Diligence Date, that:

   i. Buyer can obtain all governmental approvals necessary or desirable for the construction of the housing units and all related amenities on the Property;
   ii. Buyer has obtained acceptable zoning approvals for the planned number of units by the appropriate government entity or entities;
   iii. Buyer has obtained project-based vouchers from the local housing authority;
   iv. development of the Property for Buyer's intended use is economically feasible;
   v. the environmental remediation plan and costs associated with environmental reports are acceptable; and
   vi. Buyer has received commitments for all necessary financing, including but not limited to a final reservation of Section 42 tax credits from Virginia Housing.

c. Buyer determining, on or before the Closing Date, that:

   i. Buyer has obtained acceptable site plan approval by the appropriate government entity or entities, provided that Buyer has submitted a site plan to the appropriate government entity or entities no later than December 1, 2024, and thereafter has diligently pursued resolution of government comments thereto and ultimate approval thereof; and
   ii. The Property is in compliance with the lender and investor environmental requirements.

7. **Entry to Property; Studies.** From and after Buyer's delivery to Seller of the Insurance Documentation (as defined below), Buyer and its employees, officers, directors and

agents (each, a "**Buyer Party**" and collectively, the "**Buyer Parties**") shall have the right to enter the Property to conduct environmental tests, soils tests, or any other such investigation as deemed necessary by Buyer at Buyer's sole discretion and expense; provided that Buyer shall not conduct or cause to be conducted any invasive testing or studies (e.g., a "Phase II" environmental site assessment) without the express prior written consent of Seller. Buyer will indemnify, defend and hold harmless Seller from and against any and all losses, costs, claims, damages, expenses or causes of action (collectively, "**Claims**") which might occur as a result of the entry upon the Property by Buyer Parties or otherwise from Buyer's activities on the Property, and Buyer shall restore the Property to the condition existing before said tests or investigations were conducted. The foregoing indemnification obligations shall survive Closing or the earlier termination of this Agreement. Before any Buyer Party may enter upon the Property Buyer shall deliver to Seller an ACORD insurance certificate evidencing commercial general liability insurance naming Seller as an additional insured, with a combined single policy limit of no less than One Million Dollars ($1,000,000.00) (the "**Insurance Documentation**").

8. **Seller Covenants.** Except as otherwise provided herein, during the term of this Agreement, Seller shall not, without the prior written approval of the Buyer, (a) make or permit to be made, any material changes or alterations to any part of the Property; or (b) enter into any agreement of lease, easement or lien, whatsoever; or (c) enter into any agreement for the sale of the Property to a party other than the Buyer.

9. **Notices.** Any notices required or permitted to be delivered under this Agreement may be given by e-mail, first-class mail, nationally-recognized overnight courier service (e.g. FedEx or UPS) ("**Overnight**"), or by hand delivery, with such notices deemed delivered as follows: (i) if by e-mail, upon transmission of the same as evidenced by the sender's e-mail server, provided that a copy delivered by another method listed herein within two (2) business days thereafter; (ii) if by first-class mail, five (5) business days after deposit with the USPS; (iii) if by Overnight, the next business day after deposit with such Overnight service provider; and (iv) if by hand delivery, at the time such delivery is actually made.

   a. Notices to Buyer may be sent to:

      500 S. Front Street, Floor 10
      Columbus, OH 43215
      Attention: Greg Mustric
      Email: gmustric@wodagroup.com

   b. Notices to Seller may be sent to:

      Petersburg South Associates, LLC
      Attn: Ms. Bernadette Palmer
      7204 Glen Forest Drive
      Suite 100

Richmond, Virginia 23226
Email: bpalmer@clovellycorp.com

With a copy to:

Hirschler
Attn: R. Robert Benaicha
2100 E. Cary Street
Richmond, Virginia 23223
Email: rbenaicha@hirschlerlaw.com

10. **Assignments.** Buyer may not assign this Agreement, in whole or in part, without the, without the prior written consent of Seller, and any purported assignment made without Seller's consent shall be void *ab initio*. Notwithstanding the foregoing, Buyer may without Seller's consent assign this Agreement in whole to any entity that controls, is controlled by, or is under common control with Buyer. No permitted assignment of this Agreement shall be effective unless and until Buyer provides to Seller a copy of the written agreement effecting such assignment, and such agreement provides for the assignee's assumption of all of Buyer's obligations hereunder. Notwithstanding the foregoing, Woda Cooper Development, Inc., an Ohio corporation, shall remain fully liable for performance of all obligations of Buyer hereunder notwithstanding the effectiveness of any subsequent assignment of its rights hereunder.

11. **Buyer Costs.** Buyer shall pay all costs incurred with respect to the Commitment, the Survey, any other investigations it may perform of the Property and its feasibility for its use, and of any owner's title insurance policy it may procure with respect to the Property. Seller and Buyer agree that any title insurance procured by Buyer will be furnished through a title agency of Buyer's choice.

12. **Brokers.** All commissions owed to any real estate broker as a result of this transaction shall be paid for by the Seller. Seller agrees to pay such commissions and agrees to hold Buyer harmless and to defend Buyer against any claims for any commissions. Such obligation is expressly accepted by Seller upon Buyer's binding representation herein made that Buyer has not engaged any real estate broker or agent in connection with this transaction. Buyer shall indemnify, defend and hold Seller harmless from and against any and all Claims that may arise or may be suffered by Seller as a result of the inaccuracy of the foregoing representation. The foregoing indemnification obligation shall survive Closing or the earlier termination of this Agreement.

13. **Governing Law; Venue.** This Purchase Agreement shall be governed by and construed in accordance with the laws of the Commonwealth of Virginia without regard for conflicts of laws principles. Each of the parties agrees that any disputes arising under this Agreement shall be submitted to the exclusive jurisdiction of the state or federal courts sitting in and for the City of Richmond, Virginia, and hereby waive any and all rights to object thereto.

14. **Severability.** If any term, provision, or condition contained in this Agreement shall, to any extent, be invalid or unenforceable, the remainder of this Agreement shall not be affected thereby, and each term, provision or condition of this Agreement shall be valid and enforceable to the fullest extent provided by law.

15. **Counterparts.** This Agreement may be executed in several counterparts, each of which shall be deemed an original for all purposes and all of which together shall constitute and be deemed one and the same agreement. Counterparts executed and/or exchanged electronically (e.g., via DocuSign or via e-mail in .pdf format) shall be as effective as those executed by hand and exchanged tangibly.

16. **Successors and Assigns.** This Agreement shall be binding upon the parties hereto and their respective successors, assigns, heirs, executors, distributees, and personal representatives.

17. **Condemnation and Casualty.** If prior to Closing any portion of the Property shall be taken by condemnation or similar right of eminent domain or like process ("**Condemnation**"), or damaged by casualty ("**Casualty**"), which Condemnation or Casualty shall materially affect the Property or Buyer's ability to develop the Property, Seller shall promptly provide notice to Buyer of such Condemnation or Casualty, and Buyer may elect to (a) terminate this Agreement and receive a refund of all deposits and interest thereon paid by Buyer or (b) proceed hereunder notwithstanding such Condemnation or Casualty, with a pro-rata reduction in Purchase Price based upon the percentage of the Property taken and/or damaged.

18. **Buyer Materials.** Buyer shall share with Seller any and all due diligence materials for the Property as they become available, including without limitation any engineering and/or geotechnical studies or reports procured by Buyer, any site plans prepared by or for Buyer, and any materials submitted to the City of Petersburg or any other governmental or quasi-governmental authority or public utility in connection with Buyer's planned development of the Property.

[END OF DOCUMENT -SIGNATURE PAGE FOLLOWS]

SIGNATURE PAGE

Seller:

Petersburg South Associates, LLC,
a Virginia limited liability company

By: Bernadette Palmer

Name: Bernadette Palmer

Its: Manager

Buyer:

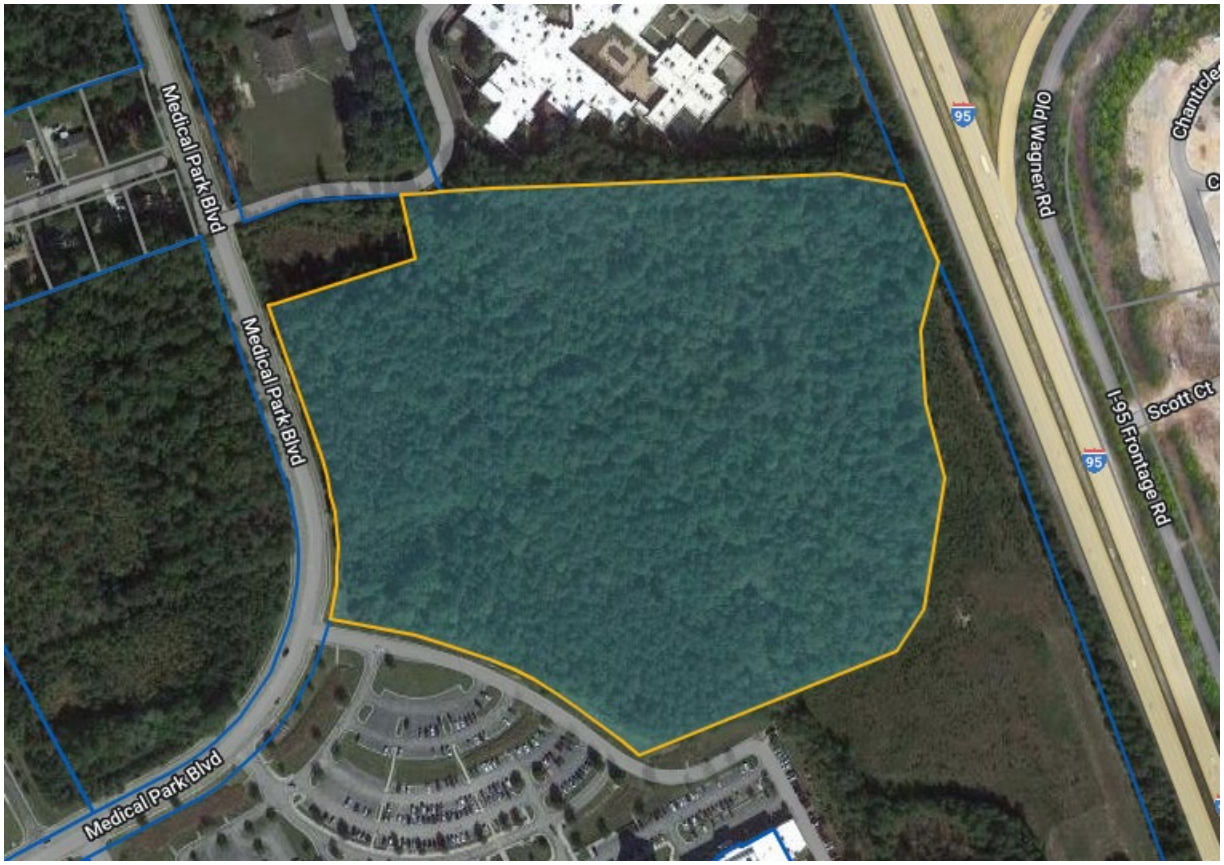
Woda Cooper Development, Inc.,
an Ohio corporation

By: _____

Name: Maia Cooper

Its: Vice President

Exhibit A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